

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN THE UNITED STATES

Complete Community Opposition How-To

A practical manual for neighbors, landowners, Tribal nations, farmers, ranchers, and citizens' groups facing a pipeline, a mine, a factory farm, a power plant, a landfill, a highway, or a data center on land, air, and water they depend on. The United States is federal: much of the real power sits with states, counties, and cities, so alongside the federal tools this guide points you to the state and local levers that decide most projects — check your own state's rules.

INTRODUCTION & FRAMEWORK

The clearest recent proof that an ordinary American coalition can kill a megaproject is the **Keystone XL pipeline** — and the alliance that killed it was one almost nobody predicted. When TransCanada (TC Energy) proposed to run a tar-sands pipeline from Alberta across Montana, South Dakota, and Nebraska — over the Ogallala Aquifer, the drinking water for millions, and through Lakota treaty territory — the opposition became a "**Cowboy and Indian Alliance**": Nebraska ranchers and farmers who refused to sign easements, Tribal nations including the Rosebud Sioux, Fort Belknap, Standing Rock, and Ponca, and the national climate movement, all fighting the same pipeline. Over roughly twelve years they used every lever the system offers. Landowners refused eminent domain and got a Nebraska approval law struck down. Lawyers challenged the federal environmental reviews under **NEPA** and blocked the pipeline's **Clean Water Act** water-crossing permits in court. Tribes pressed **treaty rights** and the failure to consult. And a relentless public campaign kept the fight in the national eye. The cost and the delay piled up; the permit was revoked in January 2021; and in June 2021 **TC Energy abandoned Keystone XL for good**.

The "Cowboy and Indian Alliance" that killed Keystone XL — Nebraska ranchers, Tribal nations, and the national climate movement — drew on a real, if uneven, toolkit, and won by running every front at once for over a decade. Federal environmental laws require agencies to study and disclose a project's harms (**NEPA**), protect endangered species and let citizens sue to enforce that (the **Endangered Species Act**), guard the nation's waters and again let citizens sue (the **Clean Water Act**), and can be challenged in court when an agency acts unlawfully (the **Administrative Procedure Act**); protest, petition, and litigation are constitutionally protected. And much of the deciding power is **state and local** — zoning, state permits, utility commissions, and in some states a stronger environmental-review law — often where a community's leverage is greatest. But these tools have real limits, and this guide states them plainly. Keystone XL wasn't stopped by one lawsuit or one march; it was stopped by an unlikely **coalition** that ran every front at once, made the project too slow, too expensive, and too politically toxic to finish, and refused to quit through losses, appeals, and changes of administration. The same pattern runs through the fights communities win in America, from the Standing Rock resistance to the Dakota Access Pipeline to the thousands of local zoning and permit battles that never make the news — no single lever is enough on its own.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals — federal, state, and local — and a chain breaks at its weakest link. A large U.S. project typically needs federal permits (a **Clean Water Act** §404 permit, a right-of-way, an **Endangered Species Act** consultation) resting on a **NEPA** review; it needs **state permits** and, often, a **public utility commission** approval; it needs **local zoning** and land-use approval; and it needs land, financing, and public acceptance. Every one of those is a link you can grab. **Find the one closest to your hand and pull** — and very often the closest link is local.

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the project needs a federal permit and endangered species or waters are in play, the citizen-suit laws genuinely bite** — the Endangered Species Act and Clean Water Act let any person sue to enforce them, and have stopped projects cold.
- **If it's mainly a local land-use fight, your leverage may be greatest at the county commission or city council** — and in some states, a strong environmental-review law (like California's CEQA) is sharper than the federal one.
- **NEPA is weaker than it was.** It's a disclosure law, not a veto, and recent amendments and Supreme Court rulings have narrowed and sped it up — so treat a NEPA challenge as one tool among several, strongest when paired with the ESA, the Clean Water Act, and state and local levers.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the comment periods, the citizen suits, the public-records laws, the local hearings — and **run every front at once**: the documents, the comments, the courts, the coalition, the press, the money. That's how Keystone XL was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

Power is split three ways, and you must map which level holds your decision. **Federal agencies** issue federal permits — the **Army Corps of Engineers** for Clean Water Act §404 (wetlands and waters), the **Bureau of Land Management** or Forest Service for rights-of-way on federal land, the **Fish and Wildlife Service** for Endangered Species Act consultation, the **EPA** for many pollution permits — each usually tied to a **NEPA** review. **State agencies** issue state environmental and pollution permits, and **public utility (or service) commissions** approve pipelines, power lines, and plants. **Local governments** — county commissions, city councils, planning and zoning boards — control land use and often hold the most accessible, and most decisive, vote. Know which level holds the link you can reach.

How a Project Moves — and Where You Jump In

The environmental review (NEPA / state equivalent). A federal action triggers a NEPA review — an Environmental Assessment or a full **Environmental Impact Statement (EIS)** — with **public comment periods**. Many states have their own version (California's CEQA is the strongest). *Your opening — and it arms every later step*: file detailed, substantive comments in the comment period. Courts review the agency's decision on that record, so your comments are the raw material of any later lawsuit.

The permits. The agencies issue the §404 permit, the right-of-way, the pollution permit, the species consultation. *Your opening:* a permit built on a defective review, or that ignores species or waters, can be challenged.

The state and local approvals. The utility commission approves or denies; the county or city votes on zoning and land use. *Your opening:* show up, organize, and vote — this is often where a project actually dies.

Construction and operation. *Your opening:* permit violations, enforceable by citizen suit.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — corporate records set the reputational exposure. **What it still needs** — the permit not granted or under challenge, the easements not signed, the financing not closed: whatever's missing is the soft spot (Keystone XL never got its easements or its water-crossing permits). **Who's paying and insuring it** — banks and insurers with climate and reputational exposure, and any public subsidies whose terms can be scrutinized.

Who's Supposed to Be Watching

Each is an ally or an arena. The **federal and state agencies** run the permits and must answer your comments. The **public utility commission** approves infrastructure and holds public hearings. **County commissions and city councils** hold the local vote. The **federal and state courts** review agency decisions under the APA and the environmental statutes, and hear **citizen suits** under the ESA, the Clean Water Act, and the Clean Air Act. **Inspectors general and state auditors** examine public money. And America's **deep environmental and land movements, its public-interest law firms, and a free press** are the forces that reach furthest — the combination that beat Keystone XL.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether a federal permit and protected species or waters are engaged, whether you have a local land-use lever, whether a strong state review law applies, and how determined the backers and the administration are.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Substantive comments in the review	15–35%	during review	low	On record; changes or a redo
Local zoning / commission fight	25–50%	months	low	Project denied or conditioned locally
Citizen suit (ESA / Clean Water Act)	30–55%	1–3 yr	low–mod (fees may shift)	Permit vacated; project enjoined
APA / NEPA challenge in court	25–50%	1–3 yr	mod	Review remanded; permit vacated
Public utility commission intervention	20–45%	months–yr	low–mod	Approval denied or conditioned
Financier / insurer / eminent-domain pressure	25–50%	months–yr	low	Money withdrawn; easements refused

What you do	Roughly works	How long	Cost	What "works" means
Everything together (federal permits, species/water, public watching)	40–65%	1–5 yr	mod	Blocked, vacated, delayed, abandoned
Everything together (clean process, backers determined)	20–45%	1–5 yr	mod	Delayed, conditioned, exposed

The levers that move the needle most are the **citizen-suit laws** (ESA, Clean Water Act), the **local land-use fight**, and — where it applies — a **strong state review law**, backed by the coalition and the press. Keystone XL shows the ceiling (a megaproject killed by an unlikely alliance over a decade). The honest floor is a NEPA that's weaker than it was and courts that have grown more skeptical, where a win is often a remand or a delay rather than a clean kill — but delay and cost are themselves how big projects die.

On cost: commenting, organizing, and public-records requests are cheap or free; and the citizen-suit provisions of the ESA and Clean Water Act allow courts to award attorney's fees to a prevailing community, which is what lets public-interest firms — Earthjustice, the Southern Environmental Law Center, and others — take these cases.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this permit, this flaw, this species, this zoning vote — is strong. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.
- 2. Where is it, and what does it touch?** Get the route or footprint and lay it over protected things — **wetlands and waters** (Clean Water Act), **endangered species** habitat (ESA), a floodplain, an aquifer, Tribal treaty land and cultural sites, a residential zone. **Waters, endangered species, and Tribal treaty rights are among the sharpest federal levers**, so this map is your most important document — Keystone XL crossed the Ogallala Aquifer and treaty land.
- 3. What stage is it at, and what's the next deadline?** Is a NEPA (or state) comment period open? Is a zoning or commission hearing scheduled? Has a permit issued (starting a challenge clock)? These openings are strictly time-bound.
- 4. What does it still need that it lacks?** A federal permit, a state approval, a local rezoning, an easement, financing. The missing piece is the soft spot.
- 5. Who else is affected, and who already opposes it?** Neighbors, landowners on the route, the Tribe, downstream and downwind communities, local and national groups. Keystone XL's power was an unlikely coalition — cowboys and Indians — so look for allies who aren't the "usual" ones.

What this looks like in real life. A community learns a pipeline is routed across wetlands and an aquifer, through a county that has to approve it and past land the owners won't sell. The five questions yield: a named company behind it; a route over waters and an aquifer, with a \$404 permit and a species consultation required (the federal levers); a comment period open and a county hearing scheduled (the local lever); a project still needing permits and easements; and a coalition of landowners, the Tribe, and national groups. That's the Keystone XL pattern — comment now, organize the county, refuse the easements, and get the citizen-suit case ready.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and in America the comments and record you build become the basis of any lawsuit. Build it in three layers.

Layer one: the paper trail. Get the documents the decisions rest on — the NEPA (or state) review and EIS, the permit applications and the permits, the species surveys, the wetland delineations, the utility-commission filings. The federal **Freedom of Information Act (FOIA)** and your **state's public-records act** force out what isn't public. Then read the review hard for flaws — an understated impact, an ignored alternative, a species or a wetland brushed over, cumulative effects skipped (the failure that dogged Keystone XL's water permits).

Layer two: the ground truth. Dated, located photographs and video of the site, the waters, the wildlife, the neighborhood — baseline images before any damage most of all — and the testimony of affected neighbors and landowners.

Layer three: the map of protections and jurisdictions. Lay the project over wetlands and waters, endangered-species habitat, floodplains and aquifers, Tribal treaty land and cultural sites, and the zoning map, so every legal lever — and every level of government you can reach — is visible. Walking into an agency, a commission, or a courtroom with the review, the permits, and that map is what makes them take you seriously.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The NEPA/state review and EIS, the permit applications and permits, species and wetland surveys, utility-commission filings** — from the agencies and the commission docket; force out the rest under FOIA and your state's public-records act (8A).
- **Zoning and land-use records** — from the county or city.
- **Ownership and financing** — corporate records, and lender/insurer information.
- **The protections-and-jurisdiction map** — wetlands and waters, species habitat, floodplains and aquifers, Tribal land and cultural sites, and the zoning map, laid over the project.
- **Dated site evidence and named testimony** — photographs marked with date and place, and neighbors' and landowners' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Keystone XL's strength was a coalition no one expected. Build yours in four moves.

Start with a tight core. The neighbors and landowners most affected, the people who know the land, a few tireless organizers, and respected local figures.

Build the unlikely coalition. America's biggest wins come from alliances across the usual lines — ranchers and Tribes, hunters and conservationists, farmers and climate activists, left and right united against a shared threat. Keep the campaign rooted at the **local level**, not only in Washington. Hold meetings where people see the evidence — the map of the project over their water and land.

Center Tribal leadership where it applies. Where treaty rights, cultural sites, or the duty to consult are engaged, Tribal nations hold some of the strongest legal ground in the country; build the campaign around

supporting that leadership, at the nations' direction.

Bring in the experts and the lawyers — early. Reach the public-interest firms — **Earthjustice**, the **Southern Environmental Law Center**, the **Center for Biological Diversity**, the **Native American Rights Fund**, your regional environmental law group — and the scientists who can dismantle a weak review. The citizen-suit fee-shifting makes strong representation possible.

Build to last. These fights run for years, across changes of administration. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial and emotional toll — and, if direct action is contemplated, get legal advice first, and know that some states have passed harsh anti-protest laws around infrastructure.

STEP 4: LEGAL CHALLENGES

Law is one of the sharpest American levers — but use the right law in the right venue, because the citizen-suit statutes and the state review laws are often stronger than NEPA.

Comment First — It Builds the Record

Everything downstream is stronger if you filed detailed, substantive comments in the environmental review. Courts review an agency's decision on the administrative record, and generally won't hear an argument you didn't first raise to the agency — so your comments are the foundation of any lawsuit.

The Citizen-Suit Laws — the Sharpest Federal Tools

The **Endangered Species Act** and the **Clean Water Act** each contain a **citizen-suit provision**: any person can sue to enforce them, and prevailing plaintiffs can recover attorney's fees. Under the ESA, an agency must consult before it may harm a listed species, and "taking" one is prohibited — famously, the Supreme Court halted a nearly finished dam to protect a listed fish. Under the Clean Water Act, discharging into waters or filling wetlands without a valid permit is unlawful, and defective §404 permits have been vacated in court — which is how Keystone XL's water crossings were blocked. These are the levers most likely to actually stop a project.

NEPA and the APA — Real, But Narrowed

A federal permit rests on a **NEPA** review, and you can challenge a decision under the **Administrative Procedure Act** as "arbitrary and capricious" — for a review that ignored impacts, alternatives, or cumulative effects. Be honest about NEPA's limits, though: it's a **disclosure** statute, not a veto (an agency can approve a project after fully studying its harms), and recent amendments and Supreme Court rulings have **narrowed its scope and sped it up**. So treat NEPA as one tool among several — strongest when paired with the ESA, the Clean Water Act, and a state review law — and remember that a NEPA win is usually a **remand** (redo the review), which buys delay, not an outright kill.

State Law, Tribal Rights, and Standing

Don't overlook the sharpest levers of all for many projects. **State environmental-review laws** — California's **CEQA** above all — often reach further than NEPA and apply to state and local approvals, with courts issuing writs to set aside a bad approval. **Public utility commissions** decide pipelines and power lines and can deny them. **Local zoning** can stop a project outright. **Tribal treaty rights** and the federal **duty to consult** (and the National Historic Preservation Act for cultural sites) are powerful where they apply. One caution: federal courts require **standing** — a concrete, particularized injury — so your plaintiffs should be people

who actually use and are harmed by the place at risk (neighbors, users, landowners), which is exactly who your coalition already is.

The Honest Limits

Straight talk: the citizen-suit laws are powerful, but litigation is slow; NEPA is weaker than it was and the federal courts have grown more skeptical of environmental challenges; a NEPA win often just buys a remand and delay; and a determined administration can push a project hard. So use the strong tools — the comments, the ESA and Clean Water Act citizen suits, state review laws, the local and utility-commission fights — but pair them with the coalition, the money pressure, and the press, be ready for a years-long fight across administrations, and count a vacated permit, a remand, delay, and a project abandoned under its own weight as wins alongside a clean kill.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a legal flaw. Not "the review is bad" but *"the agency never assessed the impact on this listed species — so under the ESA the permit is unlawful."*

A wetland becomes a barrier. *"This fills waters of the United States without a valid §404 permit — a Clean Water Act violation any person can sue on."*

A treaty becomes a shield. *"This crosses treaty territory, and the government never consulted the Tribe as it must."*

The harm becomes a public story. *"The aquifer that waters our farms and our children — risked for a pipeline we never agreed to."*

Match it to the venue: the flaws to the agency comments; the species and waters to the federal citizen suit; the state-law defects to the state court; the zoning to the county commission; the treaty to the Tribe and the courts; the human and the land to the press.

STEP 5: MEDIA STRATEGY

In America, publicity is power — Keystone XL and Standing Rock became national stories, and that attention was as decisive as any hearing. A free press, an engaged public, and a broad coalition make the media front central, and it protects campaigners too.

Lead with people and place, not procedure. Not "the EIS was procedurally deficient" but "the water our farms and families depend on, the land our families have worked for generations — risked for a project we never agreed to." Use your strongest material: dated photographs, the map of the project over the water and land, named landowners and Tribal voices, and any court win banked.

Work several audiences at once. Local and regional press build the county-level pressure that decides land-use fights; national press and social media build the political cost; and financial media reach the banks and insurers. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — get legal advice before any direct action, especially given harsh state anti-protest laws.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Public-records request (FOIA / state act).

Subject: Public-records request — [project].

"Under the Freedom of Information Act [or: our state public-records act], we, residents of [place], request the environmental review and EIS, the permit applications and permits, and the species and wetland surveys for [project] at [location]. [Contact.]"

8B — Comment in the environmental review.

Subject: Comment on the [EIS / permit] for [project].

"We, residents of [place], object to [project]: [the review ignores the impact on this listed species / these wetlands; it fails to assess cumulative effects; the alternatives were inadequate]. We ask that the permit be denied or a full assessment required. [Attach evidence.]"

8C — To a public-interest law firm (citizen suit).

Subject: Possible ESA / Clean Water Act citizen suit — [project].

"Our community faces [project], which threatens [this listed species / these waters]. We've gathered [the review, the permits, surveys, photographs] and believe there are grounds under the [Endangered Species Act / Clean Water Act]. We're ready to work as partners. [Contact and evidence summary.]"

8D — To the county commission / city council (zoning).

Subject: Opposition to [project] — [hearing date].

"We, residents of [place], ask you to deny [project] the [rezoning / permit] it needs. It conflicts with [our zoning / comprehensive plan] and threatens [our water / health / community]. We will attend the hearing on [date]. [Attach evidence.]"

8E — To a financier or insurer.

Subject: Environmental and legal risk in [project].

"We understand your institution may be [financing / insuring] [project] at [location], which [threatens protected species and waters / crosses treaty land] and faces active legal challenge. We ask you to weigh this against your own environmental and climate commitments. [Contact and evidence summary.]"

8F — Letter to the press.

Subject: [Community] moves to protect [water / land / air] from [project].

"For generations the people of [place] have depended on [the aquifer / the river / this land] at [location]. Now [project], by [company], threatens it — and we were never truly asked. We can provide photographs, documents, a map and interviews. [Contact.]"

8G — To a landowner on the route (eminent domain).

Subject: Your land and [project].

"[Company] may seek an easement across your land for [project]. You have rights, and refusing to sign — as the landowners who fought Keystone XL did — can be a powerful part of stopping it. Let's talk, and connect you with a lawyer. [Contact.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our water / land / air]. An unlikely alliance of ranchers, farmers, and Tribal nations killed the Keystone XL pipeline over a decade. With comments, the citizen-suit laws, our county commission, and a broad coalition behind us, we have a real chance. Please join us: comment, come to the hearing, share what you know, and stand with us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and its footprint, and look for the levers.** Wetlands and waters, an endangered species, Tribal treaty land, or a required local zoning vote are your sharpest.
2. **File detailed comments in the review (8B), and show up at the local hearing (8D).** This is the record — and often the decisive vote.
3. **Request the documents (8A) under FOIA and your state's records act, and read the review for flaws.**
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most.
5. **Reach a public-interest law firm fast (8C).** The ESA and Clean Water Act citizen suits — with fee-shifting — are the sharpest federal tools.
6. **Build the coalition and go public (8F/8H).** An unlikely alliance and a local story are how American projects die.

Even lean, those six use your rights, build the record, hit the local vote, and put a lawyer and a coalition behind you.

WHEN THE SYSTEM IS TILTED

America's tools are real, but the field is often tilted, and you must plan for it.

When the administration backs the project. A determined federal administration can speed permits and narrow reviews. Don't fold: use the citizen-suit laws, the state and local levers, and the money pressure, keep the coalition alive across election cycles, and make the political cost visible — Keystone XL was fought across three administrations.

When NEPA is narrowed. NEPA has been weakened and sped up. Lean less on it and more on the ESA, the Clean Water Act, state review laws, and the local zoning fight.

When the fight is purely local. Many projects turn entirely on a county or city vote. That's not a weakness — it's your strongest, most reachable lever. Organize the hearing, the plan, and the vote.

When they criminalize protest. Some states have passed harsh laws around infrastructure protest. Get legal advice, keep direct action lawful and disciplined, and protect your people.

What still works, and it's a lot. The ESA and Clean Water Act citizen suits genuinely stop projects; state review laws like CEQA reach further than NEPA; local zoning can deny a project outright; Tribal treaty rights are powerful; and an unlikely, determined coalition has killed megaprojects.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

American permitting is mostly rule-bound, but industry influence, campaign money, and revolving doors can bend a decision, and where they do, you expose it.

How to spot it. Approvals against the agency's own scientists; a review rushed or curtailed to suit a project; officials moving between industry and the regulator; local officials with undisclosed interests; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. **Inspectors general** and the **Government Accountability Office** examine federal conduct and money; **state auditors and ethics commissions** do the same at the state level. **Courts** can vacate a decision tainted by bias or a legal error. **State attorneys general** and prosecutors handle actual corruption. And America's **investigative press** has repeatedly exposed captured approvals.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the inspectors general, the ethics bodies, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign, so the impropriety and the pressure land together.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the levers aims it; the coalition builds the muscle; the comments and the local hearings lay the ground; the citizen suits press the legal case; the media and the money raise the cost. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and every lever — federal, state, and local; file comments in the review and show up at the local hearing; request the documents; photograph the baseline; line up a public-interest lawyer; build the unlikely coalition.

In the thick of it (months–years): bring the ESA / Clean Water Act citizen suit and any APA/state-law challenge; fight the zoning and utility-commission decisions; press landowners' eminent-domain rights and the financiers; open the media front.

The long haul (years, across administrations): carry the cases through the courts; keep the coalition and the public campaign alive through election cycles; hold the line for a vacated permit, a remand, delay, or a

project abandoned under its own cost.

FINAL ASSESSMENT

Stopping a destructive project in the United States can absolutely be done — an unlikely alliance of ranchers, farmers, and Tribal nations killed the Keystone XL pipeline over a decade of fighting on every front. Hold both truths. The tools are real: federal citizen-suit laws (the Endangered Species Act and Clean Water Act) that let any person sue and have stopped projects; the APA and NEPA, weakened but still usable; strong state review laws like CEQA; utility commissions and local zoning that can deny a project outright; Tribal treaty rights; public-records laws; and fee-shifting that makes strong lawyers affordable. And the constraints are real: a narrowed NEPA, skeptical federal courts, wins that are often remands and delays, and determined backers who can push across administrations.

Here's the discipline that wins. Map every lever — federal, state, and local — and find the wetlands, the species, the treaty right, or the zoning vote that gives you your sharpest. File detailed comments and show up at the local hearing. Bring the citizen suit under the ESA or the Clean Water Act, and use a strong state review law where you have one. Refuse the easements, pressure the money, and build the broadest, most unlikely coalition you can. Carry the story to the county and the country, and be ready to fight for years across administrations. Count a vacated permit, a remand, delay, and a project abandoned under its own weight as wins alongside a clean kill. That's what beat Keystone XL — the cowboys and the Indians, the lawyers and the landowners, every front at once. So can you.